

Court No. - 3

Case :- WRIT - C No. - 29471 of 2023

Petitioner :- Harishchandra Mishra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kamla Shanker Pathak

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

The petitioner has approached this Court against the final assessment order which was made on 06.10.2022. He has also prayed that the respondents be directed not to demand the amount as was payable under the order dated 06.10.2022.

Sri Narendra Kumar Tiwari, learned counsel for the Electricity Department has submitted that after the final assessment order was made on 06.10.2022 the petitioner had the opportunity to file an appeal under Section 127 of U.P. Electricity Act. He further submits that if the petitioner files an appeal within next two weeks the appeal shall be decided in accordance with the provisions of the U.P. Electricity Act, 2003 and U.P. Electricity Supply Code, 2005, without going into the question of limitation.

We, therefore, direct that if the petitioner files an appeal under Section 127 of U.P. Electricity Act, 2003 within a period of two weeks from today then the same shall be decided in accordance with law without going into the question of limitation.

With these observations the writ petition is finally disposed of.

Order Date :- 29.8.2023

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